IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **27.11.2025** THROUGH VIDEO CONFERENCE

CORAM: **HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)**
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER **:** CA(CAA)/73(CHE)/2025

PETITION NUMBER **:**

NAME OF THE PETITIONER(S) **:** Augmento Labs Pvt Ltd

NAME OF THE RESPONDENTS **:**

UNDER SECTION **:** 230-232 of CA, 2013

ORDER

CA(CAA)/73(CHE)2025

Present: Mr. Vijay Vigneshwar, Ld. Counsel for the Applicant.

Vide separate order pronounced in the open Court, the Application is allowed.

Meetings are dispensed with.

-sd-
(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

-sd-
(SANJIV JAIN)
MEMBER (JUDICIAL)

MS

Date: 27.11.2025

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of *Scheme of Arrangement Amalgamation*

CA(CAA)/73(CHE)/2025

AUGMENTO LABS PRIVATE LIMITED
(CIN: U72900TN2019PTC183534)
Having Registered Office at,
Global Infocity, Block-A, 2nd Floor,
40 MGR Salai, Kadanchavadi,
Perungudi,
Kanchipuram – 600 096.

…Transferor Company

and

SAKSOFT LIMITED
(CIN: L72200TN1999PLC054429)
Having Registered Office at Office at,
SP Infocity, Block-A, 2nd Floor,
40 MGR Salai, Kadanchavadi,
Perungudi,
Kanchipuram – 600 096

… Transferee Company

Order Pronounced on ***27th November, 2025***

CORAM

SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
SHRI.VENKATRAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

Present:

For Applicants : Mr. Pawan Jhabak, Advocate

ORDER

(Heard through Hybrid Mode)

1. This is a Joint Company Application Viz., **CA(CAA)/73(CHE)/2025** filed by the Applicant Companies, namely **Augmento Private Limited** (for brevity "Transferor Company") and **Saksoft Limited** (for brevity "Transferee Company") under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the **"SCHEME"**) proposed by the Applicant Companies. The Scheme is placed as **Annexure 1** at Page No.33 – 57 of the Application.

2. The Applicant Companies in this Company Application have sought for the following reliefs:

	EQUITY SHAREHOLDERS	PREFERENCE SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
DEMERGED COMPANY	Dispense with	NA	NIL	Dispense with
RESULTING COMPANY	Dispense with	NA	NIL	Dispense with

3. The Rationale of the Scheme is as under:

"1) The Transferor Company is a wholly owned subsidiary of the Transferee Company and hence, the amalgamation will help to consolidate the entities.

2) Simplification of the Group holding structure by elimination of multiple entities

3) The amalgamation will lead to greater efficiency in the overall combined business of the Transferor Company and Transferee Company including economies of scale, efficiency of operations, operational rationalization, organizational efficiency, cash flow management and unfettered access to cash flow generated by the combined business which can be deployed more efficiently

for the purpose of development of businesses of the combined entity and their growth opportunities, eliminate inter corporate dependencies, minimize the administrative compliances and to maximize shareholders value.

4) The amalgamation will result in reduction in overheads including administrative, managerial and other expenditure, and optimal utilization of resources by elimination of unnecessary duplication of activities and related costs. It will also result in a reduction in the multiplicity of legal and regulatory compliances required at present to be separately carried out by the Transferor Company and the Transferee Company.

5) The amalgamation would motivate the employees of the Transferor Company by providing better opportunities to scale up their performance with a larger corporate entity having large revenue base, resources, asset base etc., which will boost employee morale and provide the impetus to better corporate performance ultimately enhancing overall shareholder value.

6) The amalgamation is in the interest of the shareholders, creditors and all other stakeholders of the respective Companies and is not prejudicial to the interests of the concerned shareholders, creditors or the public at large."

4. It is stated that, the Transferor Company i.e. Augmento Private Limited is a private limited company incorporated on 09.12.2019 with CIN: U72900TN2019PTC183534. The main objects of the Transferor Company are as follows:

"This will be a software company which will provide software solutions to clients either turnkey or by providing resources. Will develop multiple software platforms and products as required using all possible technologies, etc.,"

The authorized, issued, subscribed and paid-up capitals of the Transferor Company as on 31.03.2025 are as follows:

Equity shares	Amount (in INR)
Authorized share capital	
1,00,000 Equity Shares of Rs.10/- each fully paid up	10,00,000
Issued, Subscribed & Paid-up Capital	
57,000 Equity Shares of Rs.10/- each fully paid up	5,70,000

The financial position of the Transferee Company as on 31.03.2025 based on the audited accounts is as under:

Particulars	Amount in INR (Rs. in Crores)
Net worth	20.732
Turnover (Gross Sales)	53.541
Current Assets	29.272
Non-Current Assets	2.241
Current Liabilities	8.85
Long Term Liabilities	1.931

5. The Transferee Company i.e. Saksoft Limited is a public listed company incorporated on 24.11.1999 with CIN: L72200TN1999PLC054429. The main objects of the Transferee Company are as follows:

> *"a. To carry on the business of system study, analysis design, development and implementation of software system, for usage of computer systems, communication system for use I Government, Industry, Business or other fields of activities, etc."*

The authorized, issued, subscribed and paid up capital of the Applicant Company-2 as on 31.03.2025 are as follows:

Share capital	Amount (in Rs.)
Authorized share capital:	
20,10,00,000 equity shares of Rs.1/- each fully paid up	20,10,00,000
Issued, subscribed & paid-up share capital:	
13,25,51,250 equity shares of Rs.1/- each fully paid up	13,25,51,250

The financial position of the Transferee Company as on 31.03.2025 based on the audited accounts is as under:

Particulars	Amount in INR (Rs. In Crores)
Net worth	332.691
Turnover (Gross Sales)	431.744
Current Assets	200.715
Non-Current Assets	319.048
Current Liabilities	121.821
Long Term Liabilities	65.251

6. It is stated that this Application has been filed in relation to a Scheme of Amalgamation between Augmento Private Limited (Transferor Company), and Saksoft Limited (Transferee Company) along with their respective shareholders and creditors.

7. It is stated that, this Tribunal may dispense with the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Companies.

8. The affidavit in support of the above application sworn in, on behalf of the Applicant Companies has been signed by Avantika Krishna in the capacity of Authorised Signatory. The same is placed at Pg. No. 25 – 26 of the application. It is also stated that the registered offices of the Applicant Companies are situated in the State of Tamil Nadu and therefore are within the jurisdiction of this Tribunal.

9. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

10. The Applicant Companies have filed their Memorandum and Articles of Association inter alia delineating their object clauses as Annexures A1 and B1. The Applicant Companies have submitted their last available audited balance sheet as on 31.03.2025.

11. The Board of Directors of the Applicant Companies vide meetings held on 07.08.2025 and 08.08.2025 unanimously approved the proposed Scheme as contemplated above. The resolutions passed thereon are placed as Annexures A3 and B3.

12. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the Rules made hereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificates of the Statutory Auditors in this regard are placed as Annexure B7.

13. The Applicant has filed a memo vide Sr. No.3039 dated 25.10.2025 stating that the Transferee Company has intimated the National Stock Exchange and the Bombay Stock Exchange in accordance with the Regulation 30 an 37 of the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015. Further the screenshots from the BSE and NSE websites reflecting the intimation given by the Transferee Company is annexed as Annexure – 3 of the memo.

14. The Appointed date as specified in the Scheme is **01.04.2026**. As per the MCA Circular No. 9/2019 dated on 21.08.2019 when the appointed date is subsequent to the date of filing the order with the Registrar under Section 232(5), the applicant companies shall file an intimation of the same with the Registrar within 30 days of such scheme coming into force.

15. Ld. Counsel for the Applicant Companies has referred to the cases of, ***"(1) Mahaamba Investments Ltd., v. IDI Limited (Bombay High Court MANU/MH/0662/2001), (2) Mohit Agro Commodities Processing Pvt. Ltd. V. Gujarat Ambuja Exports Ltd., (MANU/NL/0239/2021), (3) Sundaram Precision Components Ltd, (MANU/ND/5894/2018), (4) Andhra Bank Housing Finance Limited v. Andhra Bank [(2004)118 Comp Cas 295], (5) Ambuja Cements Limited [Comp App (AT) No.19 of 2021]"*** to contend that the Transferor Company is a

wholly owned subsidiaries of the Transferee company and that no shares are required to be issued as consideration, therefore there is no reorganisation of the share capital of the Transferee Company and consequently the shareholders of the Transferee company do not have to compromise with its creditors as result of the Scheme. The rights and liabilities of equity shareholders and unsecured creditors of the Transferee Company will not be affected as the assets of Applicant companies are in excess of their liabilities.

16. Further, Ld. Counsel has referred to case of ***Sunfast TVS Limited in CA(CAA)/1(CHE)/2023*** and ***CAPL Motor Parts Private limited CA(CAA)/40(CHE)/2023*** wherein it was held that the Transferee Company is not required to approach this Tribunal under Section 230-232 of the Companies Act,2013 for filing an separate application to dispense with the meeting of its creditors and shareholders.

17. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions:

A. IN RELATION TO AUGMENTO LABS PRIVATE LIMITED

(TRANSFEROR COMPANY)

I. <u>EQUITY SHAREHOLDERS</u>

(i) There are **7 (Seven)** Equity Shareholders, whose consent affidavits are placed at **Pg. 136-156**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.133** of the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Transferor Company that there are **7 (Seven)** Equity Shareholders in the Company whose consents by way of Affidavits has been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Transferor Company. The Chartered Accountant certifying the list of Secured Creditors is placed at **Pg.129** of the application. Since it is represented by the Transferor Company that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are **NIL** Unsecured Creditors in the Transferor Company. The Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pg.131** of the application. Since it is represented by the Transferor Company that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

B. IN RELATION TO SAKSOFT LIMITED

(TRANSFEREE COMPANY)

I. EQUITY SHAREHOLDERS

(i) There are **1,15,512 (One Lakh Fifteen Thousand and Five Hundred and Twelve)** Equity Shareholders for the Transferee Company. The shareholding pattern of the Transferee Company as on 31.03.2025 as displayed on the BSE website is placed at **Pg.73-84** of memo vide Sr.No.3039 dated 25.10.2025.

(ii) Hon'ble Bombay High Court in the case of ***Mahaamba Investments Ltd., v. IDI Limited (Bombay High Court MANU/MH/0662/2001),*** has held that since the Transferor Company is a wholly owned subsidiary of the Transferee Company and that no shares are required to be issued as consideration and there is no reorganisation of the share capital of the Transferee Company and consequently the shareholders of the Transferee Company do not have to compromise with its creditors as result of the Scheme and the rights and liabilities of equity shareholders and unsecured

creditors of the Transferee Company will not be affected as the assets of Applicant companies are in excess of their liabilities. This Tribunal therefore observes, that there is no necessity of convening, holding and conducting the meeting.

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Transferee Company. The Chartered Accountant certifying the list of Secured Creditors is placed at **Pg.252** of the application. Since it is represented by the Transferee Company that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise***.

III. UNSECURED CREDITORS

(i) There are **36 (Thirty Six)** Unsecured Creditors. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditor is placed at **Pg.252** of the application. It has sought dispensation with holding of meeting.

(ii) Hon'ble Bombay High Court in the case of ***Mahaamba Investments Ltd., v. IDI Limited (Bombay High Court MANU/MH/0662/2001),*** has held that since the Transferor Company is a wholly owned subsidiary of the Transferee Company and that no shares are required to be issued as consideration and there is no reorganisation of the share capital of the Transferee Company and consequently the shareholders of the Transferee Company do not have to compromise with its creditors as result of the Scheme and the rights and liabilities of equity shareholders and unsecured creditors of the Transferee Company will not be affected as the assets of Applicant companies are in excess of their liabilities. This Tribunal therefore observes, that there is no necessity of convening, holding and conducting the meeting.

18. The Application stands **allowed** on the aforesaid terms. The Applicant Companies are directed to file an Application for the Second Motion within a period of ***14 days*** from the date of receipt of this Order.

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VENKATARAMAN SUBRAMANIAN	**SANJIV JAIN**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)

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